

Martha Srinivas vs Martha Sujatha on 2 February, 2026

Author: K.Lakshman

Bench: K. Lakshman

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

THE HON'BLE SRI JUSTICE K. LAKSHMAN
AND
THE HON'BLE SRI JUSTICE B.R.MADHUSUDHAN RAO

FAMILY COURT APPEAL No.173 of 2015

DATE OF JUDGMENT: 02.02.2026

Between:

xxxxxxx

Appellant.

AND

xxxxxxx

Respondent.

This Court made the following:

JUDGMENT (Per Hon'ble Sri Justice K.Lakshman)

Even today, one appears for the appellant. Notice sent to respondent was returned unserved with an endorsement 'refused'. Refusal amounts to service.

2. We have perused the record.

3. Feeling aggrieved and dissatisfied with the order dated 05.03.2013 in O.P.No.44 of 2007 passed by the learned Judge, Family Court-cum-III Additional District Judge, Warangal, appellant/husband preferred the present appeal.

4. Appellant is the husband and respondent is the wife. Their marriage was performed on 20.02.2002 as per Hindu rites and customs. It is an arranged marriage. Out of the wedlock, they were blessed with a male child on 03.06.2006.

5. Appellant/husband has filed a petition under Section 13(1)(ia) of the Hindu Marriage Act, 1955 vide O.P.No.44 of 2007 against the respondent seeking dissolution of marriage on the ground of cruelty. It is alleged by the appellant that respondent used to scold him and his parents on petty issues. She has mentally tortured him many times and also threatened him to give divorce. Matter

was placed before the elders. They found fault with the respondent and advised her to lead peaceful marital life. Even then there is no change in her attitude. She joined the conjugal society of the appellant in the month of September, 2006 and she continued the said harassment. Thus, the marriage of the appellant with the respondent was irretrievably broken and there is no possibility of their reunion. Respondent subjected him to cruelty.

6. Respondent denied the said allegations and according to her, she never harassed him and only to get rid of her, appellant filed the aforesaid O.P. seeking dissolution of marriage. It is the appellant who harassed her both mentally and physically. She was forced to lodge complaint before the police.

7. To prove the said cruelty, appellant examined himself as PW.1 and elders as PWs.2 to 4. He has filed Exs.A.1 to A.5 documents. To disprove the said allegations made by the appellant, respondent examined herself as RW.1 and neighbour as RW.2. She has filed Ex.B.1 panchayat resolution, dated 05.01.2005.

8. Perusal of Ex.B.1 resolution would reveal that the appellant agreed that he will not pick up quarrels with the respondent and beat her on silly reasons. Elders have advised the mother and sisters of the appellant not to interfere with the disputes between the appellant and the respondent. Both the appellant and respondent can set up a separate family and lead their marital life. Respondent has to withdraw the complaint lodged by her with police.

9. Perusal of the record would reveal that the respondent has lodged a complaint against the appellant and his mother vide Ex.A.1 FIR in Crime No.224 of 2004. She has also lodged one more complaint i.e., Crime No.120 of 2008. On completion of investigation, the Investigating Officer laid charge sheet vide Ex.A.3. However, matter was ended in compromise vide Ex.A.5.

10. It is the appellant who filed the aforesaid O.P. against the respondent seeking dissolution of marriage on the ground of the cruelty. Therefore, appellant has to plead and prove the same by adducing cogent evidence. In the present case, to prove the said cruelty, appellant examined the elders as PWs.2 to 4. Their evidence is not corroborative with the evidence of PW.1.

11. As discussed supra, in Ex.B.1 itself appellant agreed that he will not pick up quarrels with the respondent and he will not beat her for silly reasons. Even then, there is no change in his attitude. Cruelty is not defined in any statute. Learned Family Court has to consider the allegations made by the appellant and come to a conclusion that the same amounts to cruelty either mentally or physically.

12. Human mind is extremely complex and human behaviour is equally complicated. Similarly human ingenuity has no bound, therefore, to assimilate the entire human behaviour in one definition is almost impossible. What is cruelty in one case may not amount to cruelty in other case. The concept of cruelty differs from person to person depending upon his upbringing, level of sensitivity, educational, family and cultural background, financial position, social status, customs, traditions, religious beliefs, human values and their value system as observed by the Apex Court in *Samar Ghosh v. Jaya Ghosh* 1.

13. Matrimonial cases before the Courts pose a different challenge, quite unlike any other, as we are dealing with human relationships with its bundle of emotions, with all its faults and frailties. It is not possible in every case to pin point to an act of . (2007) 4 SCC 511 "cruelty" or blameworthy conduct of the spouse. The nature of relationship, the general behaviour of the parties towards each other, or long separation between the two are relevant factors which a Court must take into consideration as observed by the Apex Court in Rakesh Raman v. Smt. Kavita².

14. Cruelty is a course or conduct of one, which is adversely affecting the other. The cruelty may be mental or physical, intentional or unintentional. The cruelty alleged may largely depend upon the type of life the parties are accustomed to or their economic and social conditions and their culture and human values which they attach importance. Each case has to be decided on its own merits as held by the Apex Court in Naveen Kohli v. Neelu Kohli ³.

15. Cruelty is not defined in any statute. It is a course or conduct of one, which is adversely affecting the other. We have to consider the entire evidence and the allegations made by the husband, assess the same and come to a conclusion that the same amounts to cruelty or not.

. 2023 AIR (SC 2144 . (2006) 4 SCC 558

16. As discussed supra, on consideration of the said aspects only, learned Family Court dismissed the said O.P. filed by the appellant/husband. It is a reasoned order and there is no error in it. Therefore, appellant herein failed to make out any case to interfere with the impugned order.

17. In the light of the aforesaid discussion, this appeal is liable to be dismissed and accordingly, the same is dismissed.

Miscellaneous applications pending, if any, shall stand closed. There shall be no order as to costs.

_____ K. LAKSHMAN, J _____
B.R.MADHUSUDHAN RAO, J 2nd February, 2026.

YNK THE HON'BLE SRI JUSTICE K. LAKSHMAN AND THE HON'BLE SRI JUSTICE
B.R.MADHUSUDHAN RAO FAMILY COURT APPEAL No.173 of 2015 2nd February, 2026.

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